LEGAL PILLAR · 1

Licenses & Intellectual Property

Third-party dependencies, commercial use and conflicts

Component	License	License allows sale?	Conflict
Spring Boot	Apache 2.0	✓ Yes	—
React	MIT	✓ Yes	—
React Native	MIT	✓ Yes	—
Vite	MIT	✓ Yes	—
Nginx	BSD-2-Clause	✓ Yes	—
PostgreSQL	PostgreSQL License	✓ Yes	—
RabbitMQ	MPL 2.0	✓ Yes	—
SeaweedFS	Apache 2.0	✓ Yes	—
OpenCV (≥ 4.5)	Apache 2.0	✓ Yes	—
Pika (RabbitMQ client)	BSD-3-Clause	✓ Yes	—
MediaPipe	Apache 2.0	✓ Yes	—
RTMPose (MMPose)	Apache 2.0	✓ Yes	—
Docker (Moby engine)	Apache 2.0	✓ Yes	—
YOLO (Ultralytics)	**AGPL-3.0**	◐ Only if open-sourced	**Yes · resolved**
MDL (L. Sousa, IEETA)	**All rights reserved**	✗ No	**Pending IEETA**

Ownership

ProSense is owned by the **University of Aveiro (IEETA)** and will **not be commercialised**. MARE Box is a partner and uses it free of charge.

The only conflict: YOLO

AGPL-3.0 applies whenever others use the software over a network, even for free. **ProSense source code will be public under AGPL-3.0**, so YOLO can be used in the platform.

MDL (Lúcia Sousa, IEETA): no license defined yet, so all rights stay reserved **until IEETA decides**.

LEGAL PILLAR · 2

Medical Devices & Sector Regulation

Regulation (EU) 2017/745 (MDR)

Positioning

ProSense **supports trainers and physiotherapists**. It does not diagnose, treat or prescribe: **the professional always decides**.

Training

Coaches and athletes

- Counting reps, cadence and range of motion is **fitness monitoring**
- → **not a medical device**

Rehabilitation

Physiotherapists · borderline

- Monitoring an injury is a medical purpose under the MDR
- Prescriptions and alert thresholds are **set by the physiotherapist**; ProSense only records and displays them
- Low-confidence warnings; no diagnostic claims
- Non-commercial research prototype, **not placed on the market**; a commercial release would need an MDR assessment
- Independent physiotherapists: role in handling clinical data to be defined with the UA (later phase)

Other regulation

- **GDPR**: favourable opinion of the UA Data Protection Officer, Parecer 22-2026-EPD (ref. CEIC 6-CEIC-UA/2026-D), see data protection slides
- **AI Act** (Reg. 2024/1689): not high-risk. Fitness is not in Annex III, and ProSense is not a medical device (Art. 6(1))
- **Lei n.º 39/2012**: technical responsibility in fitness facilities. Regulates professionals, not software

LEGAL PILLAR · 3

Terms & Conditions

Five key points that protect the software's creators

1 Terms of use

For MARE Box members aged 18+. Accounts are personal; only record people who signed the consent form.

2 Limitation of liability

Metrics are automatic estimates, not medical advice. Exercise is done at the user's own risk.

3 Intellectual property

The software belongs to the University of Aveiro (IEETA). Users keep the rights to their videos, which are deleted within 30 days at most. **(to be confirmed)**

4 Jurisdiction

Portuguese law applies, under the courts of Aveiro. **(to be confirmed)** Privacy requests are made in the app or to the responsible researcher, and reported to the UA Data Protection Officer.

5 Changes to terms

Users are notified in advance. Continued use means acceptance.

Refunds

Not applicable: ProSense is free and there are no payments.